

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor Temporary License of JACOB JACKSON License No. 084276 Respondent	CASE NO. 18-0101 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Science ("Board") and Jacob Jackson ("Respondent"), 2210 Bryan St, Sioux City IA 51105, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC chapter 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with revocation, suspension, or other disciplinary action taken by a licensing authority of this state, another state, territory, or country, and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(14).

B. FACTUAL CIRCUMSTANCES

2. On May 5, 2017, Respondent was issued mental health counselor temporary license number 084276, which is currently active through May 5, 2020.

3. On September 7, 2017, the South Dakota Board of Addiction and Prevention Professionals entered a Final Order in which Respondent's status as an Addiction Counselor Trainee was relinquished and forfeited at a time when he was under investigation for reported ethical or professional misconduct.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over the parties and the subject matter of these proceedings.

5. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and

effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that he has the right to be represented by counsel on this matter.
8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
9. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
10. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
11. This Order shall not be binding as to any new complaints received by the Board.
12. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.
13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
14. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

15. Respondent is hereby **CITED** for having disciplinary action taken by a licensing authority of another state and **WARNED** that future violations of the laws and rules governing the practice of mental health counseling may result in further disciplinary action.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 18 day of January, 2019.



JACOB JACKSON
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on the 14 day of March, 2019.

Erik Oosterink by Tony Allen
Chairperson Board Executive.
Iowa Board of Behavioral Science